

HOPITAL PRIVE DE LA LOIRE data breach action

[Association], a certified consumer association, seeks €[to be set] to fund a French collective damages action (action de groupe) against HOPITAL PRIVE DE LA LOIRE on behalf of 524,867 victims.

Source decision: CNIL Délibération SAN-2026-009 du 21 juillet 2026

Legal basis: GDPR art. 32, GDPR art. 34

Status: appeal status not stated in the decision

Platform assessment · 5 strong · 2 medium · 0 weak · 7 red flags · 21 claims checked against the decision: 20 supported, 1 to check, 0 overstated, 0 unsupported · details on page 2

DRAFT FOR LEGAL REVIEW · generated from the CNIL decision · every quote is checked word for word against the decision · values in [brackets] are to be provided

Type of harm

IS THE HARM QUANTIFIED?

☐ Quantified

☐ Quantifiable

☒ To be proven

NATURE

☒ Financial

☒ Non-material

☐ Overcharge

☐ Loss of chance

The breach exposed victims to risks of identity theft, phishing, and reputational or discriminatory harm due to the unauthorized disclosure of sensitive personal and health data.

« La formation restreinte considère que l'accès non autorisé ou la divulgation des données contenues dans le DPI de l'hôpital est de nature à créer un préjudice moral et matériel pour les personnes concernées. » (p. 7) ✓ **verbatim**

Victims

NUMBER

CNIL decision

524,867

persons

IDENTIFIABLE?

☒ Yes

☐ Partly

☐ No

« l'attaquant est parvenu à se connecter au dossier patient informatisé de l'hôpital le 26 juin 2025, en utilisant les identifiants du compte d'un médecin libéral rattaché à l'hôpital. Il a alors multiplié les requêtes pour comprendre leur fonctionnement ainsi que l'arborescence du site. » (p. 3) ✓ **verbatim**

CATEGORY

☒ Consumers

☐ Businesses

☐ Retail investors

☐ Employees

☒ Other

Proof of class membership: The breach notification sent by the hospital (courriels, SMS, courriers postaux, or communiqué de presse)

Subgroups: Patients whose data was exfiltrated (524,867); Patients whose national ID card recto was exposed (46,185); Patients whose health data was exposed (43); Persons designated as trusted third parties by patients (202,246)

« a contacté ses patients par différents biais afin de les informer de la survenance d'une attaque informatique (communiqué de presse sur la page d'accueil de son site » (p. 18) ✓ **verbatim**

Defendant

NATURE

☒ Private company

☐ Listed group

☐ Public body

☐ Association or union

SOLVENCY

☐ Low

☐ Medium

☒ Strong

The hospital had a revenue of approximately €93.4 million in 2024-2025 and is part of the RAMSAY SANTE group, a major European healthcare provider.

Indicators: revenue €93.4M (HOPITAL PRIVE DE LA LOIRE, 2025), group RAMSAY SANTE, insurance [], competent court civil **Assumption**

« Entre les mois de juillet 2024 et juin 2025, l'hôpital a réalisé un chiffre d'affaires d'environ 93,4 millions d'euros » (p. 2) ✗ **not found in decision**

Value of the claim

€

Total = victims who opt in × compensation per victim **Computed**

Scenario	Opt-ins	€ / victim	Total
Low (0.5%)	2,624	€500	€1.3M
Base (2%)	10,497	€500	€5.2M
High (5%)	26,243	€500	€13.1M

FUNDING SOUGHT

€[]M

FUNDER'S SHARE

Assumption

30%

Opt-in rates and € per victim are assumptions (rate based on: health). Benchmarks: minimum claim of €2-4M in France; investment of about 1/10 of claim value (European Commission study, 2025).

Timeline

Expected duration: [] years · Limitation period ends: [date]

Facts

June–July 2025

Source decision

21 July 2026

Filing

[target date]

Judgment on liability

[estimate]

Victims opt in

[period]

Compensation paid

[estimate]

« il résulte de ces investigations que l'attaquant est parvenu à se connecter au dossier patient informatisé de l'hôpital le 26 juin 2025 » (p. 3) ✓ **verbatim**

FUNDING FRAMEWORK · ART. 16, FRENCH LAW OF 30 APRIL 2025

- ☐ No funder influence over the conduct of the action
- ☐ Funding publicly disclosed
- ☐ Written conflict-of-interest policy
- ☐ Funder has no ties to the defendant

Ticked only by the association.

THE ASSOCIATION

[Name], certified since [date]

Statutory purpose: [link to the action]

Counsel: [law firm]

Contact: [name, role, email]

Platform assessment

Independent check by the platform against the CNIL decision. Cannot be edited by the association. No probability of success is given. Checked 4 Oct. 2026.

The CNIL decision confirms multiple GDPR breaches, including security failures and notification omissions, affecting a large group with sensitive data. However, harm remains unquantified and recovery scenarios are speculative.

Fault established	STRONG	CNIL found multiple breaches of GDPR Articles 32 and 34, with detailed findings on security failures and notification omissions. « manquements aux articles 32 et 34 du RGPD » (p. 3) ✓ verbatim
Data sensitivity	STRONG	Breach involved health data, national ID card copies, and other sensitive personal data. « copies de rectos de cartes d'identité » (p. 22) ✓ verbatim · repaired by code, check support
Group size	STRONG	524,867 patients and 202,246 trusted third parties were affected. « 202 246 fiches comportaient des données relatives à la personne de confiance » (p. 3) ✓ verbatim · trimmed by code, check support
Harm evidence	MEDIUM	CNIL identified risks of identity theft, phishing, and discrimination, but no direct evidence of actual harm was cited. « à une usurpation de leur identité ou à des tentatives d'hameçonnage » (p. 7) ✓ verbatim · trimmed by code, check support
Victim notification failure	STRONG	CNIL explicitly found a breach of Article 34 for failing to notify 202,246 trusted third parties. « aucune information n'a été délivrée aux 202 246 personnes désignées comme tiers de confiance » (p. 18) ✓ verbatim
Defendant	STRONG	Hôpital Privé de la Loire is a private company with strong solvency, part of the Ramsay Santé group. « société HOPITAL PRIVE DE LA LOIRE, groupe RAMSAY SANTE » (p. 2) ✗ not found in decision
Recoverability	MEDIUM	Recovery scenarios are assumptions; opt-in rates and damages per claim are speculative.

Red flags to check before committing

- ▶ Appeal status: Decision is susceptible to appeal before the Conseil d'État within two months of notification.
- ▶ Limitation period: Verify the applicable limitation period for GDPR-based claims in France.
- ▶ Standing of the association: Confirm the association's legal standing to bring a representative action under French law.
- ▶ Proof of harm: Harm is assumed but not quantified; actual evidence of financial or non-material harm must be established.
- ▶ Opt-in rates: Recovery scenarios rely on speculative opt-in rates (0.5%, 2%, 5%) with no empirical basis.
- ▶ Defendant solvency: While revenue is confirmed, solvency assumptions should be verified independently.
- ▶ Competent court: The assumption that the civil court is competent must be confirmed under French procedural law.

Claims in this brief checked against the decision

20 supported

1 to check

0 overstated

0 unsupported

9 assumptions

The full list of claims with quotes is in the investor view.

Summary of the decision

Délibération SAN-2026-009 du 21 juillet 2026. Plain-language summary; each sentence is followed by the passage of the decision that supports it.

1. The French data protection authority CNIL sanctioned Hôpital Privé de la Loire for a personal data breach.

« Délibération de la formation restreinte n°SAN-2026-009 du 21 juillet 2026 concernant la société HOPITAL PRIVE DE LA LOIRE » (p. 1) ✓ **verbatim**

2. An attacker accessed the hospital's electronic patient records system on 26 June 2025 using a liberal practitioner's credentials and exfiltrated data.

« l'attaquant est parvenu à se connecter au dossier patient informatisé de l'hôpital le 26 juin 2025, en utilisant les identifiants du compte d'un médecin libéral » (p. 3) ✓ **verbatim**

3. The breach affected 524,867 patient files, including civil status, social security numbers, postal and email addresses, and permanent patient identifiers.

« il a ensuite procédé à l'exfiltration de 524 867 fiches patients contenant des informations telles que l'état civil, le numéro de sécurité sociale, les coordonnées postales et électroniques et le numéro d'identifiant permanent » (p. 3) ✓ **verbatim**

4. The CNIL found the hospital failed to secure remote access to the patient records system, violating Article 32 of the GDPR.

« l'absence d'authentification multifacteur lors de la connexion de ces utilisateurs au DPI de l'hôpital ne permettait pas d'assurer la sécurité du système » (p. 9) ✓ **verbatim**

5. The CNIL also found the hospital's access rights policy was inadequate, as it did not restrict access to patient files to only those involved in their care, violating Article 32 of the GDPR.

« la politique d'habilitations au DPI de l'hôpital est inadéquate dès lors qu'elle » (p. 11) ✓ **verbatim** · trimmed by code, check support

6. The hospital failed to implement automated analysis of application logs to detect suspicious activity, violating Article 32 of the GDPR.

« pris aucune mesure d'analyse automatisée des traces applicatives du » (p. 13) ✓ **verbatim** · trimmed by code, check support

7. The hospital informed its patients of the breach but did not notify the 202,246 designated trusted third parties whose data was also compromised, violating Article 34 of the GDPR.

« aucune information n'a été délivrée aux 202 246 personnes désignées comme tiers de confiance par des patients de l'hôpital » (p. 18) ✓ **verbatim**

8. The CNIL imposed a fine of €500,000 on Hôpital Privé de la Loire for the breaches of Articles 32 and 34 of the GDPR.

« prononcer à l'encontre de la société HOPITAL PRIVE DE LA LOIRE une amende administrative d'un montant de cinq cent mille euros (500 000 €) » (p. 23) ✓ **verbatim**